

The case management conference scheduled for July 17, 2026 is hereby vacated. The court schedules this matter for an order to show cause hearing regarding the status of stay on **December 11, 2026 at 8:30 a.m. in Department 1**. Department 1 is located at 101 Maple Street, Auburn, California 95603.

13. S-CV-0056819 Raines Owner LLC v. Rojas, Dylan Michael

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Defendants are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Dismiss Complaint

Defendants Acrisure of California LLC, Acrisure of California Partner Group LLC, and Acrisure West Insurance Services LLC move to dismiss the action for (1) lack of subject matter jurisdiction or, in the alternative, (2) on forum non conveniens grounds in the interests of justice. Plaintiff opposes the motion.

The request for joinder to the motion by defendants Brock Regan Tillotson and Dylan Michael Rojas is granted.

As to the argument that this court lacks subject matter jurisdiction, defendants contend this action concerns damages to real property located in the State of Tennessee and it is therefore a local action that shall be heard in the State of Tennessee. In support of this argument, defendants rely in part on Tennessee Code section 20-4-103, which provides:

In actions commenced by the attachment of property without personal service of process, and in cases where the suit is brought to obtain possession of personal property, or to enforce a lien or trust deed or mortgage, or where it relates to real property, the attachment may be sued out or suit brought in any county where the real property, or any portion of it, lies, or where any part of the personal property may be found.

Preliminarily, this is a venue statute describing what county in which an action should be brought in the State of Tennessee. It does not support a finding that this court lacks subject matter jurisdiction to hear this case. Plaintiff's complaint alleges causes of action for breach of fiduciary duty, negligence, intentional misrepresentation, concealment, negligent misrepresentation, and an Unfair Competition Law claim. These claims are based in professional negligence and fraud rather than claims for the recovery of or title to real property. While plaintiff's complaint involves facts pertaining to real property located in Tennessee, it does not include any allegations any defendant caused the damage to the real property. Moreover, the alleged wrongdoing is alleged to have occurred within the State of California. The complaint further alleges that the individual defendants reside in the State of California. It appears from the face of the complaint and the claims therein that this court has subject matter jurisdiction over these claims and

defendants' motion fails to demonstrate any reason this court would lack subject matter jurisdiction.

Defendants in the alternate ask the court to dismiss or stay this action as California an inconvenient forum. "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." (Code Civ. Proc., § 410.30, subd. (a).) The burden of proof is on the party asserting forum non conveniens. (*Fox Factory, Inc. v. Super. Court* (2017) 11 Cal.App.5th 197, 204.) When analyzing such a motion, "[t]he court 'must first determine whether the alternate forum is a "suitable" place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California.'" (*Id.*, at p. 203, quoting *Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751.)

Here, it appears Tennessee is a suitable alternate forum for trial in this action, as all defendants by way of motion or by way of joinder agree to the forum. As to the private factors, while some of the witnesses would be located in Tennessee, other witnesses would be in California. Two of the defendants reside in California whereas plaintiff is located in Tennessee. Defendants do not submit evidence as to where the other entity defendants are located. In light of the information presented, the private factors weigh slightly in favor of California. The public factors, however, weigh heavily in favor of California. California has a strong interest in regulating the alleged wrongdoing of insurance brokers operating within its borders. California also has an interest in protecting consumers under the Unfair Competition Law. Defendants fall short of their burden of showing of showing the interests of justice would be served if the action were heard in a different forum.

Based on the foregoing, the motion to dismiss for lack of subject matter jurisdiction is denied and the alternative motion to dismiss or stay the action due to forum non conveniens is denied.

14. S-CV-0056953 Nickell, Andrew v. PG&E

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petition for Approval of Minor's Compromise

The petition is granted as prayed. After careful consideration of the petition and the supporting attachments, the court finds the settlement is in the best interest of the minor. If oral argument is requested, the appearance of the minor at the hearing is excused.